

Madan Mohan @ Raju v. State of U.P. — recovery citation, speaking order and Section 127

High Court of Judicature at Allahabad · Division Bench · 16 December 2019 · Writ-C No. 41512 of 2019 (Allahabad) · Writ-C No. 41512 of 2019 · **Writ disposed of. Petitioner directed to appear before the Executive Engineer with objections; speaking and reasoned final order to follow; coercive recovery stayed for six weeks or until disposal of the objection, whichever earlier; Section 127 appeal if aggrieved; citation revives automatically on default.**

HEADNOTE

A consumer challenging a recovery citation for want of hearing and alleged non-compliance with the U.P. Electricity Supply Code, 2005 was not granted certiorari on the merits. The High Court directed him to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive recovery for six weeks or until disposal of the objection, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003. Failure to appear would automatically revive the citation.

FACTUAL SUMMARY

Madan Mohan alias Raju petitioned the Allahabad High Court to quash recovery proceedings started on a citation dated 11 November 2019 issued by respondent no. 5. He contended that the electricity department was taking coercive action without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the State and the electricity department were heard. The Court did not examine the citation on merits and instead gave directions for objections before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

recovery citation — speaking final order and section 127 appeal

HOLDING

Where a writ is brought against a recovery citation, the Court may, without deciding the dues, direct the consumer to appear before the Executive Engineer with objections and evidence, require a speaking and reasoned final order, stay coercive recovery for a limited period, and relegate any remaining grievance against that final order to an appeal under Section 127 of the Electricity Act, 2003, the citation reviving automatically if the consumer defaults in appearance. ¶ 4-7

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections, the Court left any remaining grievance to a Section 127 appeal in accordance with law. ¶ 6

alternative-remedy-section-127-appeal The writ was disposed of without a merits grant or refusal on the citation; the statutory appeal under Section 127 was reserved if the petitioner was aggrieved by the Executive Engineer's final order. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION WAS ISSUED IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged by the petitioner but not examined; the Court directed a speaking order on objections instead. ¶ 3

NOT DECIDED — MERITS OR QUANTUM OF THE UNDERLYING ELECTRICITY DUES

¶ 4

